

Court No. - 34

Case :- CONTEMPT APPLICATION (CIVIL) No. - 2457 of 2012

Petitioner :- M/S Dates Discs Ltd.

Respondent :- Chandan Prakash, Executive Engineer, Eudd And Another

Petitioner Counsel :- Vinod Sinha, Mahesh Sharma

Hon'ble Krishna Murari, J.

Heard learned counsel for the applicant.

The applicant alleges that the order dated 16.05.2012 passed in Writ Petition No. 18425 of 2012, has been violated. From a perusal of the application, a prima facie case has been made out.

Let notices be issued to the opposite party nos. 1 and 2 within a week, returnable within six weeks by which time counter affidavit may be filed failing which charges may be framed after summoning the contemnors.

It is, however, open to the opposite party nos. 1 and 2 to comply with the order of this Court and file an affidavit of compliance on or before the date fixed.

The opposite party nos. 1 and 2 need not appear in person at this stage. Office is directed to send a copy of this order along with the notice.

29.05.2012

VKS/ CA 2457/11

Court No. - 40

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Petitioner Counsel :- Vinod Sinha, Mahesh Sharma

Respondent Counsel :- Nripendra Mishra, Sc

Hon'ble Vikram Nath, J.

On the request of learned counsel for the parties, put-up tomorrow (31.08.2012).

Order Date :- 30.8.2012

SS

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Petitioner Counsel :- Vinod Sinha, Mahesh Sharma

Respondent Counsel :- Nripendra Mishra, Sc

Hon'ble Vikram Nath, J.

Heard learned counsel for the applicant, Sri Nripendra Mishra, Advocate, representing opposite party no.1 and Sri Piyush Shukla, learned Standing Counsel, who has assisted the Court.

The directions of the writ court as contained in the order dated 16.5.2012 was to respondent no.3 (opposite party in the contempt application) to restore the electricity supply / power connection of the petitioner within 24 hours from the date of filing of certified copy of the order before the said authority. The order further provided that respondent no.3 or its officer would be at liberty to inspect and check the meter whenever they desire after reaching the factory premises and it further recorded that petitioner undertakes not to interfere or stop the officers from taking the meter reading or making inspection. The copy of this order was served on the respondents on 18th May, 2012 thereafter reminder was also given but the supply was not restored. Compelled by the inaction the contempt application was filed in which notices were issued on 29.5.2012.

Counter affidavit has been filed by the opposite party. The stand taken in the counter affidavit is firstly that the applicant should install its meter on the G.T. Road in place of the present position of the meter which is situated close to the factory, as according to the Department, the officers of the Department are facing difficulty and have to invest 25 to 30 minutes in taking meter reading. Secondly, it is the

case of the opposite party that under Clause 5.4 (f) of the U. P. Electricity Supply Code 2005 meter is to be installed at the point of supply either at the consumer premises or outside the consumer premises so that there is access to the licensee for meter reading and other purposes. According to Sri Mishra, applicant is not shifting the meter to the main road nor providing the access through which the transmission line can be taken to the meter.

On the other hand, learned counsel for the applicant has submitted that the applicant is the consumer of electricity for the last 40 years and has been regularly paying his bills and has never been a defaulter. The supply was disconnected for frivolous reason that the official of the Department has to invest 25 to 30 minutes for taking the meter reading and checking the same. The said action was challenged before this court wherein the direction was issued to restore the supply within 24 hours. The interim order is dated 16.5.2012. Despite lapse of three and half months the supply has still not been restored resulting into huge losses to the applicant. According to him when the existing line was disconnected on the frivolous ground it was the duty of the Department to have found an alternative route for supply of the electricity and only thereafter disconnected the electricity connection. He further submits that line was actually disconnected as the land through which the line was passing had been purchased by a builder and some construction work is going on the said land.

These issues cannot be examined in this contempt proceedings. Whether or not the disconnection was validly made on justifiable grounds is to be adjudicated in writ jurisdiction. Department is under a direction to ensure the supply failing which the contempt Court will be compelled to proceed further in the matter for framing of charges against the opposite parties. Before summoning, the opposite

parties are granted a week's further time to restore the connection and file an affidavit with regard to the status by the next date, failing which they shall remain present on the next date for proceeding further in the matter.

List on 11th September, 2012.

Order Date :- 31.8.2012

SS

Court No. - 40

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Petitioner Counsel :- Vinod Sinha, Mahesh Sharma

Respondent Counsel :- Nripendra Mishra, Sc

Hon'ble Vikram Nath, J.

Pursuant to the order dated 31.08.2012, Sri Chandan Prakash, Executive Engineer, EUDD-IV, Mohan Nagar, Ghaziabad opposite party no.1 and Sri Suresh Chandra, Sub Divisional Officer-II EUDD-IV, Mohan Nagar Ghaziabad opposite party no.2 are present. Sri Nripendra Mishra, learned counsel appearing for them has filed separate affidavits containing more or less similar facts and documents.

The electricity connection of the applicant was disconnected on 12.03.2012 which was challenged before this Court by way of Writ Petition No.18425 of 2012. After hearing the learned counsel for the parties the Division Bench passed an order on 16.05.2012 directing the respondent no.3 Executive Engineer (opposite party no.1) to restore the electricity supply/power connection of the petitioner within 24 hours from the date of filing of certified copy of the order before him. The Division Bench has further directed that the respondent no.3 or its officers would be at liberty to inspect and check the meter whenever they desire after reaching the factory premises and further restrained the petitioner from interfering or stopping the officers of the respondent no.3 from taking the meter reading or making inspection. A certified copy of the order was served on the opposite parties on 18.05.2012. As per the interim directions of the Division Bench supply ought to have been restored on or before 19.05.2012. Today is 11.09.2012 but till date the electricity supply /power connection has not been restored. All kind of objections have been taken by the opposite parties that the petitioner is not cooperating in providing access to the department for transmission of the line to the Transformer fixed within the factory premises.

According to the learned counsel for the applicant the electricity connection is more than 40 years old and the route from which it was coming is still in existence. The

opposite parties are finding other ways and means to delay the electricity supply /power connection taking advantage of the civil dispute between the applicant and his family members. According to the learned counsel for the applicant the opposite parties ought to have at the first instance restored the connection from the same route from where the line was connected for the last 40 years but instead the opposite parties are finding an alternative route and the way to provide supply which apparently are covered by dispute and obstruction being caused by third parties.

Thus *prima facie*, there is disobedience of non compliance of the interim order of the Division Bench for which the opposite parties are liable to be proceeded with further for framing of charges.

At this stage Sri Niripendra Misra, learned counsel for the applicant has prayed for one last indulgence to find out some solution so that the directions of the Division Bench is complied with and connection of the petitioner is restored.

The opposite parties Sri Chandan Prakash, Executive Engineer and Sri Suresh Chandra, Sub Divisional Officer have given their undertaking that within 15 days they shall comply with the directions of the Division Bench and restore the supply of the applicant and submit report on the next date. On this undertaking 15 days time is allowed to the opposite parties.

List this case on 27.09.2012. On the said date both the opposite parties shall remain present along with their respective affidavits of actual compliance.

Order Date :- 11.9.2012

RPS

Court No. - 40

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Petitioner Counsel :- Vinod Sinha, Mahesh Sharma

Respondent Counsel :- Nripendra Mishra, Sc

Hon'ble Vikram Nath, J.

Pursuant to order dated 11.9.2012 Sri Chandra Prakash Executive Engineer and Sri Suresh Chandra, Sub Divisional Officer, O.P. Nos.1 and 2, respectively, are present. Sri Nripendra Mishra, counsel for the opposite parties has filed two separate affidavits of compliance, sworn by each of the officers. According to the contents of the compliance affidavits and the documents attached thereto, the interim order of the Division Bench has been complied with as the electricity connection of the applicant has since been restored. Further Sri Misra, learned counsel for the opposite parties has passed on a photostat copy of the letter dated 26.9.2012 written by the Executive Engineer to the applicant informing him about the electricity line having been restored which also bears an endorsement by the applicant that the line has been restored, which is dated 26.9.2012 at 16.15 Hrs.

Sri Mahesh Sharma, learned counsel for the applicant also states upon instructions that the line has been restored pursuant to the interim order of the Division Bench.

In that view of the matter no further consideration is required in this contempt application. Accordingly notices are discharged. Application is consigned to record.

Order Date :- 27.9.2012

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